

26NWCV00044 26NWCV00044

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-28

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Case Number: 26NWCV00044 Hearing Date: July 28, 2026 Dept: P

FERGUSON v. FINANCE OF AMERICA REVERSE, LLC, ET AL.

CASE NO.: 26NWCV00044

HEARING: 07/28/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendants Finance of America Reverse, LLC and Compu-Link Corporation dba Celink's demurrer to the complaint is CONTINUED to Thursday, August 20, 2026 at 9:30 AM in Dept. P. Defendants' reply is due pursuant to Code in accordance with the new hearing date.

Moving party to give notice.

Defendants Finance of America Reverse, LLC and Compu-Link Corporation Db a Celink (Defendants) demur to the complaint.

Background

On January 6, 2026, Plaintiff Jamie Lousine Ferguson, as Successor Trustee of The Lucy Marie Hurd 2022 Living Trust (Plaintiff) filed this wrongful foreclosure action against Defendants Finance of America Reverse, LLC, CELINK, Trustee Corps., and Does 1 through 50 (Defendants). The complaint alleges the following: Plaintiff is the trustee of the trust that owns the real property located at 11614 Pruess Avenue, Downey, California, 90241 (Subject Property). (Complaint, ¶ 1.) Lucy Marie Hurd (Hurd), now deceased, was the original borrower under a reverse mortgage loan serviced by Finance of America Reverse, LLC secured by the Subject Property. (Complaint, ¶ 9.) After Ms. Hurd's passing, Plaintiff undertook efforts to repay the reverse mortgage and prevent foreclosure, including submitting the necessary documents to Defendants, providing verification of her authority, affirming her intent to pay off the loan to the servicer, and obtaining two loan approval letters confirming approval of two loans sufficient to cover the full payoff of the reverse mortgage debt. (Complaint, ¶¶ 10-14.) The complaint alleges "[d]espite having received clear and repeated proof of escrow, final loan terms, and verifiable capacity to pay off the loan, Defendants failed to provide a current payoff quote, failed to acknowledge the scheduled closing, and proceeded with scheduling a trustee sale for December 9, 2025." (Complaint, ¶ 16.) The complaint alleges that the

foreclosure sale occurred despite Defendants receiving documentation showing a closing date of December 12, 2025, three days after the sale. (Complaint, ¶ 18.)

The complaint asserts seven causes of action: (1) Wrongful Foreclosure; (2) Violation of California Civil Code § 2924p (Delayed Deed Recording); (3)

Violation of Homeowner Bill of Rights (HBOR) – Civil Code §§ 2923.6, 2924.11; (4) Negligence; (5) Violation of Business and Professions Code § 17200 (Unfair Business Practices); (6) Declaratory Relief; and (7) Injunctive Relief.

Late Opposition

Plaintiff filed an untimely opposition on July 23, 2026. (Code Civ. Proc., § 1005, subd. (b).) The Court will exercise its discretion to consider the late opposition. However, the Court will continue the hearing on this demurrer to first allow Defendants the opportunity to reply.

Accordingly, Defendants' demurrer to the complaint is CONTINUED to Thursday, August 20, 2026 at 9:30 AM in Dept. P. Defendants' reply is due pursuant to Code in accordance with the new hearing date.